

The Court of Appeal then concluded, however, that this s. 7 violation was saved under s. 1. They noted that there should particularly be judicial deference to legislative choice in the context of regulatory legislation, which did not have the same level of moral blameworthiness as criminal offences. On the particular issue of minimal impairment, they concluded that the challenged law here was part of a complex regulatory response, not an absolute ban on behaviour, and that even the accused's position was only that the device should allow speeds of 110 kph. Further, there was undisputed evidence that the speed limiter devices reduced the severity and frequency of accidents and therefore benefited the public through increased highway safety: this outweighed removing from truck drivers the ability to accelerate in the less than 2% of occasions where that would potentially be helpful.

3. PROCEDURAL OVERVIEW

(a) Classification of Offences and Mode of Trial

Generally speaking, there are two "levels" of courts in which criminal trials can take place: the "superior court" of the province and the "inferior court" of the province. Although these courts are all "provincial" in the sense that their territorial jurisdiction is limited to a single province, the judges of a superior court are appointed by the federal government and the judges of an inferior court are appointed by the relevant provincial government. For that reason inferior courts are often referred to as "provincial courts".

These courts have different official names from province to province. For example, superior courts include the British Columbia or Nova Scotia Supreme Court, the Saskatchewan or New Brunswick Court of King's Bench, the Ontario Superior Court of Justice, or the Cour Supérieure du Québec. Inferior courts include the Manitoba or Prince Edward Island Provincial Court, the Alberta or Ontario Court of Justice, or the Territorial Court of Yukon. Both levels of court hear criminal matters, but where any particular trial takes place will depend on a number of factors. Although other considerations can arise, primarily the "mode of trial" will be determined by the type of offence involved and whether the Crown or the accused has an "election".

At common law a distinction was drawn between indictable offences (treasons, felonies and misdemeanours) triable only by judge and jury, and offences triable only summarily by justices of the peace sitting without a jury. The distinction between felonies and misdemeanours was important in that the former (e.g., murder, burglary and rape) were punishable by death and resulted in forfeiture of the felon's property, while the latter never involved the death penalty and only rarely forfeiture. It is still maintained in the United States, but was abolished in England in 1967 and in Canada by the *Criminal Code* as early as the nineteenth century.

In the Canadian *Criminal Code* there are, broadly speaking, three types of offences: summary conviction, indictable, and dual (or hybrid) offences. (There is also a fourth type of offence, contraventions offences under the *Contraventions Act*, S.C. 1992, c. 47. These latter offences are regulatory offences and will not be discussed here.) The type of offence is always expressly stipulated in the offence definition; however, this categorization is somewhat misleading. The *Code* never describes an offence as a "hybrid offence". Rather, some offences indicate that they can be tried by indictment or can be tried summarily. When this is the case, the offence is referred to as a hybrid offence, and the Crown has an election as to which procedure to use. Further, for purposes of mode of trial at least, there are three types of indictable offences. Adding to the confusion, the trial court is determined by the classification of the offence but the *Code* does not set out the classification in an orderly way. Instead, the provisions are haphazardly strewn across the *Code* and are less than explicit in some instances. The best way to explain them, therefore, is by a process of elimination. But, first, a definition of each of the types of offences:

(i) Offences triable only on indictment

These are more serious offences. Usually the offence section or its penalty section sets out the punishment applicable to the offence. If it does not, s. 743 of the *Code* provides a maximum of five years' imprisonment. Indictable offences are of three types and the type involved has a large bearing on the forum for trial. Where an accused is charged with an indictable offence, generally speaking, he or she must be personally present at all stages of the proceedings, although ss. 650, 650.01, and 650.02 of the *Criminal Code* now permit appearing in other ways in some circumstances.

The most serious offences are given into the exclusive jurisdiction of the superior court of criminal jurisdiction. These are referred to as "exclusive jurisdiction offences", or "s. 469 offences": see ss. 468 and 469. The least serious indictable offences are absolutely within the jurisdiction of a provincial court judge. These are referred to as "absolute jurisdiction offences", or "s. 553 offences": see s. 553. For the great bulk of the indictable offences remaining, the accused is entitled to choose the mode of trial. In those cases, s. 536(2) gives the accused three choices: trial by provincial court judge alone, by superior court judge alone, or by superior court judge with a jury. If the accused does not elect a mode of trial, he or she will be deemed to have elected trial by judge and jury, s. 565(1)(c).

It is important to note the difference between the exclusive jurisdiction of the superior court at one end of the scale and the absolute jurisdiction of the provincial court judge at the other. The superior court has exclusive jurisdiction; no other court can try these offences. The provincial court judge has absolute jurisdiction: the provincial court judge is absolutely entitled to try these offences in the sense that he or she is not dependent on the accused's electing to be so tried. Other courts of criminal jurisdiction nevertheless have jurisdiction to try the accused for such offences if by

happenstance the matter ends up before them: see *R. v. Holliday*, 12 C.C.C. (2d) 56, 26 C.R.N.S. 279 (Alta. C.A.).

Up until 2019, an accused who elected trial in superior court (whether judge alone or judge with jury) was entitled to a "preliminary inquiry", in which the Crown had to show enough evidence to justify the accused being ordered to stand trial. Accused persons often waived this right, and successive changes had limited its role. In 2019, the right to a preliminary inquiry was significantly reduced, by being limited only to offences which carry a maximum punishment of 14 years' or more imprisonment: see Bill C-75, *An Act to amend the Criminal Code, the Youth Criminal Justice Act and other Acts and to make consequential amendments to other Acts*.

Notwithstanding that the accused has elected trial by provincial court judge, the provincial court judge may decide that the matter should be proceeded with by a judge or jury, s. 555, and the Attorney General may also override an accused's decision and compel a jury trial where the offence is punishable by more than five years' imprisonment, s. 568.

There are detailed provisions in the *Criminal Code* which allow an accused person to change his or her mind and to re-elect his or her mode of trial: see ss. 561 to 563.1 and 565. The heart of the re-election provisions is s. 561 which conditions the right to re-elect on the basis of a combination of: (a) the original election; (b) the point in time in the process when the accused wishes to re-elect; and (c) whether the Crown consents to the re-election. The labyrinthine nature of elections is described by Professor Tim Quigley in *Procedure in Canadian Criminal Law*, 2nd ed. (Toronto: Carswell, 2005) and in Steve Coughlan, *Criminal Procedure*, 4th ed. (Toronto: Irwin Law, 2020).

(ii) Summary conviction offences

Part XXVII of the *Criminal Code* sets out the procedure for the trial of summary conviction offences (i.e., the accused has no election and the trial will be before a provincial judge without a jury and without a preliminary inquiry). The maximum penalty for any summary conviction offence, unless otherwise provided, is \$5,000 or imprisonment of not more than two years less a day or both: s. 787(1). For many years the maximum term of imprisonment was six months, but that was changed in 2019 by Bill C-75. In that same Bill, Parliament converted most indictable offences carrying a maximum penalty of ten years imprisonment or less to hybrid offences, and so the potential penalty for summary conviction offences was raised to reflect that the category now included more serious behaviour than it had previously. In addition, where the law used to provide that no summary conviction charges could be laid more than six months after the events without the agreement of the prosecutor and the accused, that time period was raised to one year: s. 786(2). There is no limitation period for laying charges by way of indictment.

Summary conviction offences are always tried in Provincial Court (or its equivalent) or by a justice of the peace (although superior court judges also have the jurisdiction to do so, they rarely exercise it in practice). In theory,

Parliament could establish a maximum penalty of up to five years less one day imprisonment without violating the right to a jury trial under s. 11(f) of the *Charter*.

An accused charged with a summary conviction offence normally need not appear personally in court but may instead choose to have a lawyer or some other agent appear for him or her unless the judge orders that he or she must appear personally: s. 800(2) of the *Code*.

(iii) *Crown election offences (dual, hybrid)*

These are offences for which the prosecution may choose whether to proceed by way of summary conviction or by indictment. If the Crown elects summary conviction, such offences are in all respects summary conviction offences. If the Crown proceeds by indictment, the forum for the trial will depend upon the type of indictable offence involved. As with straight indictable offences, the penalty is usually specified in the enactment but, if not, is governed by s. 743. In 2019, a significant number of offences which had been purely indictable were converted into hybrid offences by Bill C-75. That was the reason for increasing the maximum penalty for summary conviction offences: some offences might now be prosecuted by summary conviction which nonetheless could be regarded as relatively serious.

Various tactical considerations enter into the Crown election. The higher available penalty for indictable offences, a prior criminal record by the accused, or a desire to require the accused's personal presence throughout may be among the reasons. Sometimes it is a matter of judge-shopping or wishing to get the matter over more quickly. The 2019 changes have complicated this decision, by blurring the distinction between the summary and indictable versions of offences. For example, an accused convicted of theft under \$5,000 in indictable proceedings faces a maximum penalty of two years' imprisonment, but in the case of summary proceedings that maximum would be two years less a day.

Only where the prosecutor elects to proceed by indictment does the accused have an election under s. 536. If the Crown proceeds by way of summary conviction, the trial will be held in Provincial Court and the accused has no option for a preliminary inquiry, trial in superior court or jury trial. The prosecutor should indicate the nature of the proceeding prior to trial.

The *Interpretation Act*, R.S.C. 1985, c. 1-21, provides:

34. (1) Where an enactment creates an offence,

(a) the offence is deemed to be an indictable offence if the enactment provides that the offender may be prosecuted for the offence by indictment;

Section 34(1) has been applied to equate Crown election offences with indictable offences in various contexts such as arrest and for the purposes of fingerprinting under the *Identification of Criminals Act*, R.S.C. 1985, c. 11.

The changes to the *Code* in 2019 illustrate one of the dangers of *ad hoc* reform. In 1994, Parliament had changed the penalty for several hybrid offences when prosecuted by way of summary conviction, increasing the

potential maximum from six months to eighteen months. This was done to reflect that some of these offences, such as sexual assault (s. 271), were more serious than most other offences even when prosecuted summarily. As noted above, Bill C-75 changed the maximum penalty for all summary conviction offences to two years less a day "unless otherwise provided by law". Section 271, setting a maximum penalty of eighteen months, was not changed. This was not accidental: in some circumstances the offence carries a mandatory minimum sentence, the Department of Justice was separately reviewing mandatory minimum sentences, and they decided not to change any until they were ready to change all. However, this has left the anomalous result that the potential sentence for sexual assault is now lower, rather than higher, than that for most summary conviction offences. On November 17, 2022, Bill C-5: "An Act to amend the Criminal Code and the Controlled Drugs and Substances Act" came into force. That Act removed the mandatory minimum sentences for 14 offences in the *Criminal Code* (primarily firearms offences) and all the mandatory minimum sentences in the *Controlled Drugs and Substances Act*. However, it made no change to the 18-month sentence in s. 271, which therefore remains anomalously low.

PROBLEM 1

How are the following *Criminal Code* offences classified? What options for trial will an accused have in each case?

1. murder (s. 235(1))
2. robbery (ss. 343, 344)
3. assault (s. 266)
4. assault causing bodily harm (s. 267(b))
5. sexual assault (s. 271)
6. theft (s. 334)
7. causing a disturbance in a public place (s. 175)
8. conspiracy to commit murder (s. 465(1)(a))
9. attempted murder (s. 239)

PROBLEM 2

You are Crown counsel prosecuting a charge of assault causing bodily harm. The accused is charged with striking his wife with his fist. His blow cut her cheek. This required three sutures at the hospital. A senior Crown asks you to try hard to avoid the matter being bumped up to a court in which the accused could choose trial by jury. In the higher court, there is a huge backlog of cases. She advises you to elect to proceed by way of summary conviction. Consider carefully whether you should follow this advice.